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BACKGROUND

This case is a premises

liability and habitability suit. Plaintiffs Brett Peace and Derina Simplice were guests at The Westin Bonaventure Hotel & Suites Los Angeles. During their stay, Plaintiffs allege that their room was infested with bed bugs and that they suffered bites.

On March 2, 2026,

Plaintiffs filed a complaint against Defendants Forward Time Corporation and Marriott International, Inc. The complaint alleges six causes of action stemming from the facts alleged above.

On April 6, 2026, Plaintiffs

amended their complaint to add Today's IV, Inc. and Interstate Hotel, LLC as named defendants. This same day, Plaintiffs also dismissed Marriott International, Inc. from this action.

On June 16, 2026,

Defendants Forward Time Corporation, Today's IV, Inc., and Interstate Hotel, LLC filed a demurrer to the second through sixth causes of action. Defendants also filed an accompanying Motion to Strike seeking to strike allegations relating to Plaintiffs' prayer for punitive damages.

On August 26, 2026,

Plaintiffs filed an opposition to the demurrer and motion to strike.

O August 31, 2026,

Defendants filed reply briefs in support of the demurrer and motion to strike.

TENTATIVE RULING

Defendants' demurrer to
Plaintiffs' complaint is SUSTAINED. Plaintiffs are granted leave to
amend their 3rd, 4th, 5th, and 6th
causes of action.

Defendants' Motion to
Strike is GRANTED with leave to amend.

LEGAL STANDARD

"[A] demurrer tests the
legal sufficiency of the allegations in a complaint." (Lewis v. Safeway,
Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to
challenge defects that appear on the face of the pleading under attack or from
matters outside the pleading that are judicially noticeable. (See Donabedian
v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a
demurrer, a court may not consider declarations, matters not subject to
judicial notice, or documents not accepted for the truth of their contents].)
For purposes of ruling on a demurrer, all facts pleaded in a complaint are
assumed to be true, but the reviewing court does not assume the truth of
conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2
Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the
complaint, as it stands, states a cause of action. (See Hahn
v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is
sustained, leave to amend must be allowed where there is a reasonable
possibility of successful amendment. (See Goodman v. Kennedy (1976)
18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a
pleading can be amended successfully. (Ibid.; see also Lewis v.
YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is
any reasonable possibility that the plaintiff can state a good cause of action,
it is error to sustain a demurrer without leave to amend." (Youngman v.
Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet

and Confer

Before filing a demurrer

or motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Proc., §

430.41, subd. (a).) The

demurring party must file a declaration detailing their meet

and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

“A determination by the

court that the meet and confer process was insufficient shall not be grounds to

overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, the parties discussed

the demurrer by telephone. (See Austin Decl., ¶ 3.) Thus, the meet and confer

requirement has been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).)

II.

Public

Nuisance (Cause of Action No. 2)

To state a cause of action

for public nuisance, the plaintiff must state: (1) Defendant, by acting, or failing to act, created a

condition that was harmful to health or obstructed the free use of the

property so as to interfere with the comfortable enjoyment of life or

property; (2) the condition affected a substantial number of people at the

same time; (3) an ordinary person would be reasonably annoyed or

disturbed by the condition; (4) the seriousness of the harm outweighs the

social utility of the conduct; (5) plaintiff did not consent to the

conduct; (6) plaintiff suffered harm that was different from the type of

harm suffered by the general public; and (7) defendant's conduct

was a substantial factor in causing plaintiff's harm. (See Birke

v. Oakwood Worldwide (2009)

169 Cal.App.4th 1540, 1548.) “Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim.” (Melton v. Boustred (2010) 183 Cal.App.4th 521, 542.)

Plaintiffs' public

nuisance claim is premised on the bed bug infestation at the hotel. (See Compl., ¶ 57 ["The uninhabitable conditions (bed bug infestations) at the Subject Property, as described herein constitutes a public nuisance"].) Plaintiffs' negligence claim is also premised on the bed bug infestation. (See Compl., ¶ 49 ["By allowing the bed bug infestation to exist within the Subject Property and failing even after both actual and constructive notice to repair the conditions, and by allowing the other harmful and dangerous conditions alleged above to continue and failing to make necessary repairs and remediation, Defendants breached their statutory duty and failed to maintain the Subject Property in a habitable condition."].) The two claims rely on the same alleged facts about Defendants' lack of due care in preventing and abating the bed bug infestation. Therefore, Plaintiffs cannot sustain an independent cause of action for nuisance. (See *Melton v. Boustred*, (2010) 183 Cal.App.4th 521, 542.)

For this reason, the demurrer to this cause of action is sustained without leave to amend.

III.

Breach

of Contract (Cause of Action No. 3)

To state a cause of action

for breach of contract, the plaintiff must demonstrate: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach (or anticipatory breach); and (4) resulting damage. (See *Wall Street Network, Ltd. v. N. Y. Times Co.*, (2008) 164 Cal.App.4th 1171, 1178.) "If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." (*Harris v. Rudin, Richman & Appel*, (1999) 74 Cal.App.4th 299, 307.)

Plaintiffs allege they

entered into a valid hotel rental agreement with Defendants. (Compl., ¶ 72.) However, Plaintiffs do not provide a copy of the agreement, nor do they set out the agreement's terms verbatim in the body of their complaint. (See generally Compl.) Plaintiffs only attach what appears to be an invoice from their stay. (See Compl., Exh. A.)

Having not provided a copy

of said agreement, nor set out the agreement's terms verbatim in the body of their complaint, the complaint does not state a cause of action for breach of written contract. (See *Harris v. Rudin, Richman & Appel*, (1999) 74 Cal.App.4th 299, 307.)

For this reason, the demurrer to this cause of action is sustained. It appears that Plaintiffs intend to bring a cause of action based on an implied warranty or covenant. Plaintiffs are granted leave to amend so they may provide a copy of the subject agreement or set out its terms in the amended complaint or clarify another basis for this cause of action.

IV.

Intentional

Infliction of Emotional Distress (Cause of Action No. 4)

To state a cause of action for intentional infliction of emotional distress ("IIED"), the plaintiff must demonstrate: "(1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress." (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273.) Outrageous conduct is a question of fact where reasonable minds may differ. (See Cross v. Bonded Adjustment Bureau (1996) 48 Cal.App.4th 266, 283.) However, the court may determine in the first instance, whether the defendant's conduct may reasonably be regarded as so extreme and outrageous as to permit recovery." (Teric v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883.) "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives . . . power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." (Hailey v. Cal. Physicians' Service (2007) 158 Cal.App.4th 452, 474.)

Furthermore, "[a] complaint must plead specific facts that establish severe emotional distress resulting from defendant's conduct." (Michaelian v. State Comp. Ins. Fund (1996) 50 Cal.App.4th 1093, 1114.) "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe emotional distress. . . ." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

Plaintiffs allege that Defendants

had prior knowledge of the bed bug infestation because a prior guest had "complained and notified Defendants through including but not limited to Yelp.com review

platform.” (Compl., ¶ 26.) Plaintiffs also allege that during Plaintiffs’ stay, they informed Defendants of the bed bug infestation and the infestation was not abated. (Compl., ¶ 82-84.) Plaintiffs allege that as a result of the bed bug infestation, Plaintiffs suffered “many sleepless nights and much ongoing emotional and mental distress”. (Compl., ¶ 91.)

The Court finds that Plaintiffs’ allegations do not support a finding that they suffered severe or extreme emotional distress. Alleging “ongoing emotional and mental distress” does not meet the heightened specificity requirement for this element. (See *Michaelian v. State Comp. Ins. Fund*, (1996) 50 Cal.App.4th 1093, 1114.) Plaintiffs’ allegations are too general and indefinite to support a finding of severe or extreme emotional distress. For this reason, the demurrer to this cause of action is sustained. Plaintiffs are granted leave to amend to allege facts to support such a level of emotional distress if they can do so in good faith. (See *Angie M. v. Superior Court*, (1995) 37 Cal.App.4th 1217, 1227.)

The Court also finds that the allegations are not sufficient to support a finding that Defendants’ alleged conduct was so extreme as to exceed all bounds of decency in a civilized community and done with the intent to cause, or with reckless disregard to the probability of causing, emotional distress. (See *Demurrer*, pp. 7:6-8:19.) While Plaintiffs allege that Defendants had prior notice, they allege no detail as to the prior notice other than that a prior guest had complained. Plaintiffs also allege they complained to Defendants, and that the infestation was “not abated” but provide no detail as to whether efforts were made to address the issue or not, not any other detail. (See *ibid.*; see also Compl., ¶¶ 23-25, 82.) The Court finds these allegations are not sufficient to support a finding that Defendants’ conduct was “so extreme and outrageous as to permit recovery” or taken with conscious disregard of causing Plaintiffs emotional distress.

For these reasons, the demurrer to this cause of action is sustained. Plaintiffs are granted leave to amend.

V.

Fraudulent

Concealment (Cause of Action No. 5)

To state a cause of action

for fraudulent concealment, the plaintiff must establish: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact. (Rattagan v. Uber Technologies, Inc., (2024) 17 Cal.5th 1, 40.)

Generally, fraud must be pled with particularity. (See Hills

Transportation Co. v. Southwest Forest Ind., Inc., (1968) 266 Cal.App.2d 702, 707.) Pleadings must generally allege facts as to “how, when, where,

to whom, and by what means the representations were tendered.” (Stansfield v. Starkey, (1990) 220 Cal. App. 3d 59, 73; Wald v. Truspeed Motorcars, LLC, (2010) 184 Cal.App.4th 378, 393.) However, in cases of nondisclosure

or concealment of facts, one cannot show “by

what means” something did not happen, or “when” it did not happen, or “where” it never happened. (See Alfaro v. Community Housing Improvement System & Planning

Assoc., Inc., (2009) 171 Cal.App.4th 1356, 1384.) Therefore, “[l]ess specificity is required when ‘it appears from the nature of the allegations that the defendant must necessarily

possess full information concerning the facts of the controversy. . .

.” (Committee on Children’s Television, Inc. v. General Foods Corp., (1983) 35 Cal.3d 197, 217.)

Plaintiff alleges that

prior to their stay at the subject hotel, Defendants were aware of the bed bug infestation via a complaint by a prior guest that appears to have been made on the Yelp.com review platform (Compl., ¶ 26) and that Defendants failed to disclose material facts regarding the infestation. (Compl., ¶¶ 95-100.)

The Court finds the

allegations insufficient to state a fraud cause of action. Plaintiffs’ allegation of what appears to be a single review on a third-party website, with no detail as to what the review stated, when it was posted or whether there is any indication Defendants saw the review, cannot support a finding of fraud.

The demurrer to this cause

of action is sustained. Plaintiffs are granted leave to amend to provide greater detail on Defendants’ purported prior knowledge of the infestation and concealment from Plaintiffs.

VI.

Unfair

Business Practices (Cause of Action No. 6)

The Unfair

Competition Law ("UCL") prohibits unfair competition, including unlawful, unfair and fraudulent business acts. (See Bus. & Prof. Code § 17200.)

As detailed above, the sum of the allegations is that one prior guest complained in some unspecified way, Plaintiffs informed Defendants of bed bugs in their room and Defendants did not abate the problem. The Court finds that these allegations are not sufficient to support an unfair business practices cause of action. Accordingly, the demurrer to this cause of action is sustained. Plaintiffs are granted leave to amend.

VII.

Motion
to Strike

A.

Meet
and Confer

Before filing a motion to strike, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).) The moving party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

"A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer." (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, the parties discussed the motion to strike by telephone. (See Austin Decl., ¶ 3.) Thus, the meet and confer requirement has been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).)

B.

Striking

Punitive Damages

“Any party, within the

time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).)

“The court may, upon a motion made pursuant to Section 435,

or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

To succeed on a motion to strike punitive damages, it must be said as a matter of law that the alleged behavior was so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent people. (See *Angie M. v. Superior Court*, (1995) 37 Cal.App.4th

1217, 1228-29.) Civil Code section 3294 provides that punitive damages are available in non-contract actions where the defendant is guilty of malice, oppression, or fraud, defined as follows:

1. “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2. “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

3. “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c).)

The Court finds that the

alleged facts are not sufficient to support a finding of malice, oppression or fraud. Accordingly, the Motion to Strike is granted. Plaintiffs are granted leave to amend.

CONCLUSION

For the foregoing reasons,

Defendants' demurrer to Plaintiffs' complaint is SUSTAINED. Plaintiffs are granted leave to amend as to the 3rd, 4th, 5th, and 6th causes of action.

Furthermore,

Defendants' Motion to Strike is GRANTED with leave to amend.